

SENATE No. 760

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing for the use of an online tool to change life insurance beneficiaries.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 760

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 760) of Barry R. Finegold for legislation to allow for the use of an online tool to change life insurance beneficiaries. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing for the use of an online tool to change life insurance beneficiaries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 123 of chapter 175 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out the second paragraph and inserting in place thereof
3 the following paragraph:-

4 No life insurance company shall accept or take action on any written request to change
5 the designation of beneficiary under any policy of life or endowment insurance unless the
6 signature of the person requesting the change is witnessed by a disinterested person; provided,
7 however, that it shall not be a violation of this section for a life insurance company to accept or
8 take action on a request submitted without such witness if the person requesting the change
9 utilizes an online tool offered by the life insurance company to request a change of beneficiary;
10 provided further, that prior to accepting or taking action on a request submitted utilizing an
11 online tool as described herein, a life insurance company shall take reasonable steps to verify the
12 identity and intention of the person requesting the change; and provided further, that a life

13 insurance company may utilize remote technologies to verify such person's identity including,
14 but not limited to, phone or videoconference. For purposes of this section, a disinterested person
15 is one who is over 18 years of age and not designated as a beneficiary in the requested change.
16 Upon receipt and acceptance of the change of designation of beneficiary, the insurance company
17 shall provide written notice of the change to the insured at the owner's last known address;
18 provided, however, that such notice may be delivered to the insured by electronic mail if the
19 change was requested through an online tool.